

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Written complaint and accompanying documentation.

A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 22/05/2023 (Monday). The complaint is directed against PARTIDO POPULAR with NIF G28570927 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that PARTIDO POPULAR has used their image without their consent for its electoral program in the Mos City Council. As (...) in the program ***PROGRAM.1 in (...). The Mayor and the Councilor for Education attended in April as representatives of the City Council at a welcome event for a foreign teacher within the framework of the ***PROGRAM.1, and photographs were taken that were published on the social media of the Concello de Mos.

Given the interest of the Councilor in said program, and in a conversation, they related it to the electoral program of the PP of Mos; the Institute responded that they had no objection to its use by the City Council but did not want to appear in an electoral program. "As we learned last Friday (XX/XX/2023), the respondent party, however, has used the photograph without their authorization for the electoral program and has also published it on Facebook."

The complainant provides:

- A message from 09/05/2023 on WhatsApp, asking XXXXX, that "today I spoke with the XXXXXXXX and also with A.A.A. about the ***PROGRAM.1 project, we wanted to tell you that the '***PROGRAM.1 program should not appear in a political party's electoral program', 'it should be able to be supported by the Concello as a public institution, but not related to any political party of any ideology' 'Please do not use it.'
- Two photographs of the pages in XXXXX of the PP MOS electoral program, 2023/2027, "vote Mos, vote XXXXX", showing in the EDUCATION section, their proposals, with no mention of the ***PROGRAM.1 project, although there is mention of a municipal linguistic immersion program with a trip to an English-speaking country for secondary school students, and with the photograph at the bottom, featuring two men and four women.
- A screenshot on Facebook from "Populares de Mos", part of the same electoral program, education section, with the photograph at the bottom, as well as an indication of the exact address where it appears, reference ***URL.1.

SECOND: Evidence collected by the SGI

As evidence collected by the staff of the AEPD, the following is noted:

- On 14/06/2023, the PP MOS FACEBOOK does not show the photograph in question, although many images are displayed, which may be from political events, although minors are also present, and the type of information provided for such purposes is unknown.

THIRD: Transfer of the complaint to the respondent

In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 14/06/2023, the complaint was transferred to the respondent for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 15/06/2023, as noted in the acknowledgment of receipt in the file.

On 14/07/2023, a response was received by this Agency, indicating:

1. The complaint does not reflect the reality of the facts as it is inaccurate and untrue, and provides "a certificate from (...)" signed on 11/07/2023, in which it states the habitual active collaboration of the Mayor and the Councilor for Education, Ms. B.B.B. and Ms. C.C.C., respectively, in various matters. It acknowledges the taking of photographs during the attendance of a foreign teacher related to the

***PROGRAM.1 and that it was used in the electoral program of the PP. It points out that “on many occasions, the press service of the Concello de Mos would accompany the Mayor and take photographs of the event being held at that time.” It indicates that (...) in the photo, but that he accepted the apologies of the Councilor for Education, considering the facts an error.

It indicates that XXXXX, that on one occasion when the Real Club Celta de Vigo invited students (15/05/2023), the Concello “provided us with a model of specific authorization for that event,” which was distributed among the students to be signed by parents or guardians.

2. The respondent adds the “evidence that the photo taken is of an institutional nature, taken within the framework of public collaboration between the Concello de Mos and the XXX of that locality, in order to promote institutional and educational events linked to that Municipality,” collaboration that has been beneficial. As an institutional photograph, “it falls within the usual publicity of public events of a character.

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institutional collaboration maintained between the two institutions,” considering “the relevance of the ***PROGRAM.1***

“The criterion for publishing said institutional photo was not limited at the time of its acquisition, nor at the time of its publication, having always followed the ordinary and usual procedure for photos obtained from the XXX of Mos.” “The discrepancy in the publication in an electoral program became evident once said photo had been published,” not at an earlier time.

“It should be noted that the essence of the complaint does not fundamentally refer to the personal image of the complainant, but to the fact that it was an act linked to the ***PROGRAM.1***, with no discrepancies regarding the content and other acts of institutional collaboration, where the complainant's image appears published regularly, among other reasons because such circumstances have not been made known to either the Concello of Mos or the Department of Education.”

3- Considers it a misunderstanding in the line of collaboration maintained habitually, or it is confined to an existing usual practice between the Concello and the XXX of that locality.

4- “The action of the Popular Party in the Concello of Mos and the publication recorded as an institutional act of its Town Hall and on the Facebook page of the Popular Party and of that locality,” responds to “informing about the reality and necessity of informing the citizens of that locality about the activities derived from the Department of Education, keeping in mind that said institutional photograph is framed within part of an electoral program where the achievements produced are highlighted in relation to those that are to be carried out in the new legislature. All of this determines that it is necessary and that citizens have the right to know the actions and commitments that are intended to be carried out in said Concello.”

FOURTH: Admission to processing

On 18/08/2023, in accordance with Article 65 of the LOPDGDD, the complaint presented by the complainant was admitted for processing.

FIFTH: Agreement to initiate

On 23/10/2023, the Director of the AEPD agreed:

“TO INITIATE SANCTIONING PROCEDURE against the POPULAR PARTY, with NIF G28570927, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR and for the purposes of the statute of limitations of the infringement in Article 72.1.b) of the LOPDGDD.”

“For the purposes provided in Article 64.2 b) of the LPCAP, the sanction that may correspond would be 5,000 euros, without prejudice to what results from the instruction.”

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SIXTH: Presentation of allegations by the respondent.

On 13/11/2023, the respondent makes the following allegations:

1- The photograph "was taken and obtained at a public event, fully authorized and consented to by all the individuals involved and participating in it, knowing in advance that the purpose of obtaining said photograph was to publicly document the academic event that was taking place, and its subsequent dissemination as a consequence of the relevance that said event carried for the municipality and its citizens, representing an international projection of the same through the ***PROGRAM.1."

It provides in document 1 a letter from the Mos City Council, which reflects the appearance and statements of the Mayor of Mos, Ms. B.B.B. It indicates that on 6/11/2013, she went to XXX in Mos to apologize to the claimant, following a publication in the press and social media regarding the ***PROGRAM.1 during the recent local elections. It is also important to highlight that the letter contains the following information:

- "The photograph published in the press and social media on 24/04 at the request of the Institute's own management, in which the teacher who arrived from Romania, a participant in the ***PROGRAM.1, appeared alongside herself, the Councilor for Education, C.C.C., the XXXXXXX of the Institute, and two teachers from XXX participating in the program, including you," was published in these channels expressly and with the intention of the teachers and administrators who requested collaboration from the local administration to give it media coverage," acknowledging that it was later used in the electoral campaign for the local elections in May 2023, apologizing for the image appearing in their campaign, "without any express intention on their part for it to appear or to cause any harm." It considers that it was a misunderstanding and an error that should not have occurred.

2- The respondent states that "The information collected in the information published by the Mos City Council has a general interest for all citizens of Mos. Complementarily, and in the exercise of the freedom of truthful information, and to contribute to the formation of an opinion among citizens regarding the works and actions undertaken, this prospectus has been prepared."

- It refers to the elements provided by the jurisprudence of the TS, ruling 591/2015 of 23/10, for cases of conflict between the rights of freedom of information and expression with the right to honor. The respondent considers that there is a conflict between the right to image and data protection with the right to information, which is exercised in this case, "taking into account the connection between the information and the published photographs, and that they were taken in public places, at events held as a result of public activities carried out," said photograph "is directly linked to the information being referenced and seeks to reinforce the message and information being conveyed to the citizens of Mos."

- There has been no intention to harm the rights protected for the complainant, referring to Article 83.2 of the GDPR. It has been a misunderstanding by the City Council to use the photographic report linked to said academic event, without any other intentions than to publicize it, due to the importance and relevance it had for the municipality, as well as the significant fact of informing the citizens.

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SEVENTH: Submission of resolution proposal.

On 13/08/2024, a resolution proposal was issued, stating:

"That the Director of the Spanish Agency for Data Protection sanctions the PARTIDO POPULAR, with NIF G28570927, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR and for the purposes of the statute of limitations of the infringement,

qualified as very serious under Article 72.1.b) of the LOPDGDD with a fine of 5,000 euros."

The proposal was sent in accordance with the rules established in the LPACAP, resulting in notification on 21/08/2024.

After the period granted to submit allegations had elapsed, none were presented.

PROVEN FACTS

FIRST: The complainant is a teacher of XXXXXXXXXX at XXXXXXXX and XXXXX with other colleagues in the ***PROGRAM.1, receiving a visit from a foreign professor in April 2023. Due to this visit, a photograph was taken with him in which, in addition, the Mayor, Ms. B.B.B., the Councilor for Culture (C.C.C.), the complainant, another teacher from the IES, and the then director of the IES appeared.

The complainant and the Mayor of Mos acknowledge that this photo was disseminated on the social network of the Concello de Mos, indicating the date of this as XX/XX/2023.

SECOND: The aforementioned photograph was subsequently displayed in the electoral program 2023-2027, PP MOS, "vote MOS, vote XXXXX" in the section "Education," appearing at the bottom of the page, after detailing several points of their program, among which is linguistic immersion, without explicit reference to ***PROGRAM.1. The photo lacks a caption explaining which event it refers to or who those people are.

The complainant provided two photos, one of the cover of the printed electoral program of PP Mos, in which the portrait of the Mayor appears, and another image in the section "XXXXXXX" where the photo subject to the complaint can be seen.

THIRD: The complainant provided a copy of a conversation via WhatsApp in which on 09/05/2023, they addressed the Councilor for Education (XXXXX), stating that they had spoken with the XXXXXXXX and with the also XXXXXXXX of the project XXXXXXXXXX, the complainant expressing that "the said project should not appear in an electoral program of a political party," asking that it not be used. "From the management, they tell us that the project should be able to be supported by the Concello as a public institution. But not related to any political party of any ideology."

FOURTH: The complainant, who filed the complaint on Monday 22/05/2023, specifies that last Friday, 19/05/2023, they learned that the respondent is distributing a printed electoral program in which the photograph appears and that they have also published it on their FACEBOOK account, providing in their complaint a screenshot of this last one in which the photograph appears, indicating that it is at ***URL.1

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The General Subdirectorate of Inspection of the AEPD verified that as of 14/06/2023, the photograph subject to the complaint was not present on the Facebook page "populares de Mos."

FIFTH: In a letter from the Mos City Council, the Mayor of Mos states that she visited XXX in Mos on 6/11/2023 (a date after the initiation agreement) to apologize to the complainant, acknowledging the use of the photograph for the electoral program of the local elections in May 2023.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II The image as personal data. Data controller

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic,

mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

Article 4.7 of the GDPR defines "data controller" or "controller" as: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the Union or Member State law determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by Union or Member State law;

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Following the STC 292/2000, of 30/11, it must be affirmed that the fundamental right to data protection, enshrined in Article 18.4 of the Spanish Constitution, unlike the right to privacy established in Article 18.1 CE, which shares the objective of providing effective constitutional protection of personal and family private life, excluding external knowledge and intrusions by third parties against one's will, seeks to guarantee that individual a power of control over their personal data, its use and destination, with the purpose of preventing its illicit and harmful trafficking to the dignity and rights of the affected individual. The right to data protection, therefore, has a broader scope than the right to privacy, as the fundamental right to data protection extends its guarantee not only to privacy in its constitutionally protected dimension under Article 18.1 CE, but also to the sphere of personal rights that belong to the realm of private life, inseparably linked to the respect for personal dignity, such as the right to honor, and to the full exercise of individual rights. The fundamental right to data protection expands the constitutional guarantee to those data that are relevant or have an impact on the exercise of any rights of the individual, whether or not they are constitutional rights and whether or not they relate to honor, ideology, personal and family privacy, or any other constitutionally protected good.

Thus, the object of the fundamental right to data protection is not limited solely to the intimate data of the individual, but to any type of personal data, whether intimate or not, whose knowledge or use by third parties may affect their rights, whether or not fundamental—such as those that identify or allow for the identification of the individual, which may serve to create their ideological, racial, sexual, economic profile, or of any other nature, or that serve any other utility that, under certain circumstances, constitutes a threat to the individual—because its object is not only individual intimacy, already protected by Article 18.1 CE, but personal data. Consequently, it also encompasses those public personal data, which, by being accessible to anyone, do not escape the power of disposition of the affected individual because their right to data protection guarantees it.

In this specific case, the image of the claimant, a teacher at the local IES, captured in the photo used for the electoral program of the local elections in May 2023, is a piece of personal data that appeared and is recorded from a photograph published by the City Council, to which the claimant is not shown to have opposed. Subsequently, the responding party, a private entity, a political party related to the Concello, used the photo in the printed electoral program of the political party, as the same individual was running for Mayor in the May 2023 elections. The photograph that the City Council previously obtained was for a specific, determined purpose desired by the claimant (availability, self-determination of the will of its holder), posing with the rest of its components that make up the photo. The claimant expresses that the data of her image, which fully identifies her, has been exposed by a political party, for which she indicates she did not grant her consent.

The actions of the responding party confirm the requirements defined as the processing of personal data, being responsible for the processing.

III Unfulfilled Obligation

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For its part, Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) of the first subparagraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states: “In order for processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is a party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

The responding party must demonstrate that the personal data they process will be processed lawfully (Article 5.1.a) of the GDPR), with Article 6.1 of the GDPR limiting the options for such lawfulness. It is the responsibility of the responding party to prove that they comply with one of the bases for legitimacy mentioned, pursuant to Article 5.2 of the GDPR, which states: “The data controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it (‘accountability’).”

On the other hand, it is noted in a WhatsApp conversation, prior to the effective use of the photo, on 09/05/2023, the non-acceptance of the use of the project XXXXXXXXXX for “political purposes of any ideology.”

It is also worth highlighting that the context in which the photo appears is in the education section of the printed electoral program of the PP of Mos, and on the Facebook page of the

the same, which contains various programmatic aspects of it, without referring to the ***PROGRAM.1 cited, and containing the photo, without specifying what it refers to, who its members are, that is, without any connection to the information contained therein.

The responding party states that, as a legitimizing basis, the right to information of the citizens of the Concello prevails. However, as has been stated, the image of the claimant is not used to provide information to the citizens about aspects related to the actions of the City Council, but for a political purpose, the dissemination of a political program in the context of an election. In addition to the content of the program and the context in which the image of the claimant appears, it lacks relevance since there is no reference to the event in which the photograph was taken, so its use in the program could

have been omitted, as the program does not contain, as indicated, any explanatory reference to it. On the other hand, it should be noted that the explanation of the political program has nothing to do with the photo being disseminated, which lacks informative interest in this context. The responding party indicates that they comply with the principle of transparency and that it is an institutional photo of relevance. However, the claimant is not a public figure, her image lacks public significance, and as stated, its dissemination was unnecessary; therefore, there is no justification for the intrusion into her right to data protection, and thus, the subsequent publication of the image of the claimant for another purpose required prior consent from her.

The objective of the information in the program is perfectly understandable without the photograph, as it does not add any aspect other than the presence of the Mayor and the Councilor of Culture, not to mention that the image does not appear to have been obtained directly by the responding party, nor was it directed at the individuals depicted in it.

The fact that the claimant did not object to the dissemination on social networks by the Concello, which was the one that obtained the image of the claimant, does not mean that the responding party, a private entity distinct from the Concello, had authorization to display the image, since all processing of personal data must, as stated, have a legitimizing basis for its processing. Here it is noted that the interests of the mayor and those of the candidate for the mayoralty coincide in the same physical person, as the mayor is the candidate presented by the party that displays the photo, which does not mean that the political party presenting its candidate for mayor has the same prerogatives as the mayor of the municipality.

Furthermore, the claim that the photo was taken in a public place, during public activities, must be rejected, as it should not be forgotten that teachers, by virtue of being public employees, do not become public figures and do not lose their right to the protection of their data, which was not violated by the Concello when displaying the photo, but by the responding party when subsequently using it without any legitimizing basis.

The qualification by the responding party of the image as institutional, as a demonstration of the public collaboration Concello-XXX, rules out its use by a private entity that has other purposes, political in this case, and which was thus warned in the WhatsApp message previously sent.

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On the other hand, the fact that the image was published by the Concello does not grant legitimacy for it to be used by the responding party, even if the dissemination of the image by the Concello was carried out without limitation, as stated in the allegation of the responding party. The responding party must demonstrate that it has a legitimate basis for the processing it carries out, as the legitimate basis is not presumed in this case, in any way, despite having been previously published by the Concello. Furthermore, the exceptional nature of the processing must be taken into account, as indicated in Article 6 of the GDPR, which states that “it shall be lawful only if it meets at least one of the following conditions.”

The judgment cited by the responding party from the Supreme Court is not applicable to this case, as it concerns the initiation of different content. The judgment deals with journalistic information about individuals of public relevance in relation to a judicial investigation into alleged political and economic corruption versus the right to honor.

Freedom of information would encompass the communication of facts that can be contrasted with objective data and consists of communicating or receiving truthful information by any means of dissemination (see all STC 5/2021, of January 25, 2021).

In this case, there is no such journalistic interest nor is it a news item, but rather an electoral program that cannot be classified as information susceptible to contrast; therefore, there is no conflict of rights, nor does it relate to the institutionalization of public opinion formation. The information does not review the achievements made by the City Council, but rather what it offers in an electoral program, and is perfectly understandable without the photo, since, in fact, it does not explain anything about it, nor

does it relate to the program, beyond the appearance of the Mayor, the candidate, in the photo. Thus, it would not correspond to the legitimate basis proposed by the responding party, which could imply, if applicable, a prevalence of the right to information, but which does not correspond to the specific case, as there is no conflict between rights but rather an artificiality that serves the responding party to be alleged in this sense.

Moreover, as stated in judgment 3212/2022 of the Supreme Court dated 28/07/2022, said court has repeatedly declared (judgments 1225/2003, of 24/12, 1024/2004, of 18/10, 1184/2008, of 3/12, 311/2010, of 2/06) that consent given to publish an image for a specific purpose does not legitimize its publication for a different purpose.

Subsidiarily, as detailed, it should be noted that in this case there is no connection whatsoever between the photo and any informative element contained and interrelated with the program ***PROGRAM.1 and the displayed photo, nor is the public interest that the image has described, because it explains nothing, thus questioning the impact of the same on the necessity of processing the personal data that makes the claimant identifiable for the purpose of being included in the electoral program of the responding party.

It should not be forgotten that before the use of the photo by the responding party, the City Council of Mos, of which the candidate was Mayor, had already informed on its page with the same photo of the project, the use of the image, and the purposes for which the claiming professor did not oppose the taking of the photo and such use. Elements that are not recorded as having occurred in the responding party subsequently.

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By failing to demonstrate in its response to the transfer and allegation that any of the bases for legitimacy contained in Article 6.1 of the GDPR may apply, this would imply the attribution of the aforementioned infringement of Article 6.1 of the GDPR to the respondent.

IV Qualification and classification of the infringement

The infringement attributed to the respondent is classified under Article 83.5.a) of the GDPR, which states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 euros or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1.b) of the LOPDGDD, which qualifies the following conduct as very serious:

(...)

a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met. (...)"

V Determination of the sanction

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified time frame - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, considering the facts presented, it is deemed that the sanction to be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as

an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

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b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have included the commission of the infringement.

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e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity

f) The impact on the rights of minors

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in those cases where there are disputes between them and any interested party.

In the initiation agreement, it was considered a mitigating factor of the infringement that the respondent

is an entity whose activity is not related to the processing of personal data, thus applying Article 76.2.b) of the LOPDGDD. This provision derives from the development of Article 83.2.k) of the GDPR, as a principle applicable to the circumstances of the case, to contemplate “any other aggravating or mitigating factor,” providing as examples the “financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

However, the fact that its main activity does not appear to be directly linked to the processing of data, such as might be the case for business entities, financial institutions, or telecommunications operators, should not serve as a spur or benefit for a potential reduction in the sanction for which it has not been deserving, understanding that not participating in the usual and daily traffic of personal data does not proportionally affect the seriousness of the infringing act. In fact, it is difficult to specify an activity that does not involve the processing of data to a greater or lesser extent and with different scopes. The respondent is a centralized political organization, of national scope, that manages data across that entire area, including that of its affiliates, categorized as special category data, although this is not the case here, but its purpose may be political, as was the case when it dealt with personal data in an electoral program. Therefore, the respondent must assume the risk that such data may be processed in a manner contrary to the law. Considering the link between the infringer's activity and the limited processing of data as a mitigating factor can only nullify the deterrent effect of the fine, defaulting the circumstances that may concur, which would be tantamount to considering that the non-habitual processing of data or the lack of connection of the infringer's activity with the processing of data could not produce negative effects, but rather positive ones, pre-configuring the mitigating circumstance without considering the elements that concur on a case-by-case basis, as in this case.

With its deterrent effect, administrative fines contribute to strengthening the protection of individuals regarding the processing of personal data and constitute, therefore, a key element in ensuring respect for the rights of such individuals, in accordance with the purpose of the aforementioned Regulation to ensure a high level of protection for those individuals regarding the processing of personal data. In conclusion, this mitigating factor is not deemed to be present in the conduct of the respondent.

However, in this case, the following are aggravating circumstances:

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- The conduct of the respondent reflects that the infringement was committed with a serious lack of diligence, approaching the intention that entails the deliberate collection of the images desired by the respondent, for political purposes through their dissemination and exposure in the program, when it was previously warned in a WhatsApp message about the opposition to their ideological use, and not only by the claimant despite being the only one who claims (art. 83.2.b RGPD). The alleged lack of intent does not prevent the commission of the infringement, which in cases like the one analyzed can be committed due to a lack of diligence. The action is perceived as aimed not at considering the rights of the individuals appearing in the photo, but at the use of an image that was obtained for one purpose, for another differentiated purpose that had already been communicated by the affected parties in the message of 9/05/2023, knowing the lack of consent for the use of said image; however, it was printed and appeared in the copies related to the campaign.

- The category of the affected personal data, with the dissemination of the image, which, in the words of the CJEU in its Judgment of 8/12/2022, case C-460/22: “The image of a person is, indeed, one of the main attributes of their personality, as it manifests their individuality and allows them to be distinguished from their peers. Thus, the right of a person to the protection of their image constitutes one of the essential conditions for their personal realization and especially presupposes the control by the person over their own image, which includes the possibility of preventing its dissemination. The protection of the right to private life is of special importance in this context, due to the ability of photographs to convey particularly personal, if not intimate, information about a person or their family

(see, in this sense, ECtHR, 7/02/2012, Von Hannover v. Germany, CE:ECHR:2012:0207JUD004066008, paragraphs 95, 96, and 103 and cited case law).” (83.2.g) RGPD).

The balance of the circumstances considered allows for a fine of €5,000 (five thousand euros) for the infringement of Article 6.1 of the RGPD.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection

RESOLVES

FIRST: TO IMPOSE a fine of €5,000 on PARTIDO POPULAR, with NIF G28570927, for an infringement of Article 6.1 of the RGPD, classified under Article 83.5.a) of the RGPD and for the purposes of the prescription of the infringement, qualified as very serious under Article 72.1.b) of the LOPDGDD.

SECOND: TO NOTIFY this resolution to PARTIDO POPULAR.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of the LPACAP, within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of 29/07, in relation to art. 62 of Law 58/2003, of 17/12, by making the payment, indicating the NIF of the sanctioned party and the number.

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of the procedure that appears in the heading of this document, in the restricted account no.

IBAN: ES00-0000-0000-XXXX-XXXX-XXXX (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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